

Tentative Rulings for September 22, 2026

Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 538 5472**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

CASE #	CASE NAME	HEARING NAME
CVME2403360	GUERRA VS GHOBRIAL	DEFENDANTS MOTION FOR TERMINATING SANCTIONS

Tentative Ruling: Motion is granted. Case is dismissed with Prejudice.

If anyone engages in conduct that is a misuse of the discovery process, the court may impose monetary sanction, issue sanction, evidence sanction, terminating sanction, and contempt sanction. (Code Civ. Proc., § 2023.030.) The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks, but the court may not impose sanctions which are designed not to accomplish the objects of discovery but to impose punishment. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487.) In exercising the court's discretion, the court may look at the following factors: (1) the time since the discovery was served; (2) whether the responding party was given an extension of time; (3) the number of discovery propounded; (4) whether the unanswered discovery sought information that was difficult to obtain; (5) whether the answers supplied were evasive and incomplete; (6) the number of unanswered questions remaining; (7) whether the unanswered questions are material to the claim or defense; (8) whether the responding party has acted in good faith and reasonable diligence; (9) the existence of prior orders compelling discovery and the answering party's response; (10) whether the party was unable to comply with the prior orders; (11) whether an order allowing more time to answer would enable the answering party to supply the necessary information; (12) whether a sanction short of dismissal or default would be appropriate. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 796-797.) A prerequisite to the imposition of the dismissal sanction is that the party has willfully failed to comply with a court order. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487.) Terminating sanctions should only be ordered when there has been previous noncompliance with a rule or order, and it appears a less severe sanction would not be effective. (*Link v. Cater* (1998) 60 Cal.App.4th 1315, 1326.)

Discovery sanctions are issued to remedy discovery abuse, not to punish the offending party. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) The sanctions should be proportionate to the offending party's misconduct. (*Id.*) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanctions." (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

The problem here is that even with their counsel's advice, Plaintiffs have still failed to appear at deposition. While counsel contends it is due to Plaintiffs' work schedules, Plaintiffs have not offered any alternative dates for their opposition. There is no indication that a lesser sanction would produce compliance with the court's order. As for continuing the hearing, there is no basis for deferring ruling until the relieved as counsel motion is heard.

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CASE #	CASE NAME	HEARING NAME
CVME2503507	MCMILLAN VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Unopposed Motion for Attorney's Fees is granted. Opposition was not considered as it was untimely. Attorney's Fees awarded in the reasonable amount of \$20,473.50 and costs of \$730.21.

Civ. Code § 1794(d) provides that if a buyer prevails in an action under the Song-Beverly Consumer Warranty Act, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code § 1794(d).) The prevailing buyer must establish entitlement to fees and the reasonableness of the fees claimed. (*Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1110.)

The lodestar method is the fundamental framework for determining a reasonable attorney fee award under California law. (*Reynolds, supra*, 47 Cal.App.5th at 1113–14; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–32.) The lodestar figure is calculated by multiplying the number of hours reasonably expended by counsel by a reasonable hourly rate. (*Ketchum, supra*, 24 Cal.4th at 1131–32.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Grp., Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 405.)

A verified time statement is entitled to credence in the absence of a clear indication that the statement is erroneous. (*Horsford v. Bd. of Trustees of Cal. State Univ.* (2005) 132 Cal.App.4th 359, 396.) Once the moving party submits billing records sufficient to document the hours expended and the hourly rates charged, the burden shifts to the party opposing the fee award to point to the specific items challenged, with a sufficient argument and citations to the evidence. (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) General assertions that the total time is excessive or that counsel used inefficient staffing do not meet this burden absent identification of specific time entries and supporting evidence or argument. (*Id.*)

“[A]bsent circumstances rendering the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee.” (*Ketchum, supra*, 24 Cal.4th at 1141; *Serrano v. Unruh* (1982) 32 Cal.3d 621, 639.) This includes time reasonably spent preparing the fee motion, reviewing the opposition, and preparing the reply. (*Id.*)

The court finds no basis for a multiplier. The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far

exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138)

The Attorney Fee rate of \$625/hr for a managing partner is reasonable in Riverside County. Associate Counsel is approved at a rate of \$375/hr and Paralegal at a rate of \$150/hr. Therefore, the lodestar is calculated as follows. Ashkan Reza is approved for 20.4 hrs at \$625/hr for a total of \$12,750.00. That amount includes preparation for the present motion. Lauren Warwick is approved for 18.3 hours at \$375.00/hr for a total of \$6,862.50. Milei Bennet is approved for .8 hours at \$150/hr for a total of \$120.00. An additional amount of 7.8 hrs approved at a rate of \$95/hr for paralegal/office legal work for a total of \$741.00. Total Lodestar for Attorney’s Fees is \$20,473.50.